

JOHNSTONE SUPPLY

Rochester: 95 Halstead Street, 14610
Toll Free: (800) 724-8806
Tel: (585) 482-8000 • Fax: (585) 482-6000
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Tel: (315) 479-8800 • Fax: (315) 479-8600
eMail: store269@johnstonesupply.com

Order on-line at www.JohnstoneSupply.com/141

NEW HIRE CHECKLIST

Employee Name:

Employee ID #: 732

Hire Date: 8/19/19 Karen Craft

1. For Controller to do prior to New Hire starting:

- ☐ Set up Computer Profile, Windows Login
- ☐ Set up Microsoft Office 365 (email, calendar, skype, intranet services)
- ☐ Set up Inform-ERP System
- ☐ Set up Johnstone Employee Network (JEN/JXI)
- ☐ Set up Voicemail (Extension)
- ☐ Add to Phone List
- ☐ Set up as User in Address Book in Copiers & Printers
- ☐ Set up in Johnstone University- JU Online
- ☐ Set up Johnstone Email
- ☐ Set up Building Access & Alarm Code

2. For HR to do with New Hire - complete the following items during orientation:

- ☒ Sign Offer Letter
- ☒ Application
- ☒ Sign Job Description
- ☒ New Hire Form/Employee Information Form
- ☒ Pay Rate Acknowledgement-2 copies
- ☒ W4 Tax Withholding Form
- ☒ IT-2104 Employee's Withholding Allowance Certificate
- ☒ Post-Offer Self-Identification Form
- ☒ I-9 Eligibility Form
- ☒ Direct Deposit Form
- ☒ Benefits Overview
- ☒ Receipt of Handbook
- ☒ Receipt of Non-Harassment Policy
- ☒ Receipt of Sexual Harassment Prevention Policy
- ☒ Receipt of Sexual Harassment Complaint Form
- ☒ Receipt of Smoking Policy
- ☒ Receipt of Confidentiality Policy



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- ☒ Authorization to Deduct Expenses
- ☒ Payroll Deduction Authorization

3. HR will hand Employee during orientation:

- ☒ Employee Handbook
- ☒ Copy of Benefits Overview
- ☒ Skylight Pay Options Program
- ☒ New Health Insurance Marketplace Coverage
- ☒ COBRA General Notice
- ☒ Allworx Voicemail OGreetings Setup Guide
- ☒ Copy of Pay Rate Acknowledgement Form
- ☒ Copy of Job Description
- ☒ Copy of Offer Letter

4. HR to do Training during New Hire's orientation:

- ☒ Sexual Harassment Prevention Training

5. For HR to do on New Hire's first day after orientation is complete:

- ☒ Set up in Payroll and Time & Attendance
- ☐ Add to Org Chart
- ☒ Scan New Hire paperwork and Save to Online Employee File
- ☒ Create Personnel, Medical & Payroll files & Labels for New Hire paperwork
- ☒ File Form I-9 in Active Forms I-9 Folder
- ☒ File Background Check forms and information in the Background Check File
- ☒ Add Employee to Payroll File and Commission/Bonus File online

☐



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July 31, 2019

Ms. Karen Craft
18 Highpoint Trail
Fairport, NY 14450

Dear Karen:

I am pleased to offer you the position of Controller for Johnstone Supply of Central NY. This letter is to confirm my offer and your acceptance of the position. You will be reporting directly to me as your General Manager and President.

Unless an alternate mutually satisfactory date is agreed upon, your employment will begin on Monday, August 19th, 2019. Your starting compensation package includes three components: salary, bonus (details to be negotiated within your first year of employment), and a benefit program. This position will pay \$92,000 per year (\$3,538.46 bi-weekly).

Upon the successful completion of your 90-day probationary period you will become eligible for a number of full employment benefits as outlined on the accompanying page. Specific to your situation as a key manager, health care will be made available to you effective immediately upon the first day of your employment and the premium would be covered in full.

Subject to a routine motor vehicle and background check, and a copy of your most recent W2, your starting package is based upon your indications and statements to me and to my staff that you are fully capable of meeting the requirements and description of the job as has been outlined to you previously. This offer is made on an "at will" basis and should not be construed as a guarantee of employment for any specific duration.

Please indicate your acceptance of our offer by signing below and returning one copy of the letter, with your original signature, to me no later than August 5, 2019. We would appreciate having your decision as soon as possible, but please feel free to talk to me further if you have any questions.

Karen, I am confident that you have the skills, enthusiasm, and talent to be successful in this challenging position. I look forward to having you on my team.

Welcome to JOHNSTONE SUPPLY!

Sincerely,

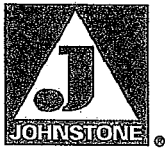
Kenneth Livingston
President
Enclosures (2)

By signing below, you are accepting this position and our offer.

Karen Craft

Date

8/1/19



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JOB DESCRIPTION

Job Title: **Controller**
FLSA Status: **Exempt**
Reports To: **President**

Position Summary:

Contributes to the financial and operational integrity of Johnstone Supply by managing the daily administrative operations and staff (HR/IT/Finance/Accounting) and their resources, playing a vital support role to internal users while ensuring compliance with GAAP, accurate preparation of financial and managerial reports, as well as continuously improving processes and procedures for increased efficiency and effectiveness of the business enterprise.

Subordinate Summary:

At any given time multiple positions may be filled by the same individual.

1. Directly supervises the Accounting and Financial Analyst who is responsible for the general ledger, managing organizational, operational and financial information and preparing financial reports. This position is also responsible for managing the AP function.
2. Directly supervises the Accountant who is responsible for administering the Company's credit policy and procedures, processing payments and maintaining customer account records. The Accountant also has general ledger responsibility for vendor rebates and inventory.
3. Directly supervises the receivables clerk whose primary focus is collecting payment on aged receivables.
4. Directly supervise the Inventory/price analyst who plays an integral role in price and product management.
5. Directly supervises the resources employed in the management of company data processing systems, telephony systems and network hardware and software.

Essential Job Results:

Staffing

1. Manage department resources such as personnel, equipment, or supplies by identifying department needs, and obtaining and allocating resources to meet those needs.
2. Manage department staff by:
 - Conducting interviews in the hiring process and making hiring recommendations;
 - Overseeing the training, cross training and development of employees;

Johnstone Supply of Central NY provides equal employment opportunities to all employees and applicants for employment and prohibits discrimination and harassment of any type without regard to race, color, religion, age, sex, national origin, disability status, genetics, protected veteran status, sexual orientation, gender identity or expression, or any other characteristic protected by federal, state or local laws. This policy applies to all terms and conditions of employment, including recruiting, hiring, placement, promotion, termination, layoff, recall, transfers, leaves of absence, compensation and training.

Controller- Continued

- Coaching, counseling, and disciplining employees, as necessary;
 - Conducting annual performance and developmental reviews.
 - Internal Controls
3. Ensure the efficiency and effectiveness of the Finance Department by assisting the President in:
 - Setting accounting policies;
 - Selecting accounting methods;
 - Ensuring compliance with GAAP; and
 - Continuously improving the Department through the use of technology and streamlined processes and workflow.
 4. Monitor controls and procedures including, Cash Disbursements, Cash Receipts; and General Ledger.
 5. Manage contractors and their contracts (if any) employed by Johnstone in the management of its IT services, financial operations or facilities maintenance.

General Ledger/Financial Reporting

1. Prepare and analyze monthly financial statements and reports against budget and prior year.
2. Consolidate year-end financial information and prepare financial statements for year-end closing.

Operations

1. Administer daily operations of the Finance, HR and IT personnel, contractors and systems.
2. Audit (if required or needed) – Manage the annual audit by preparing audit schedules, providing auditors with substantiation and documentation, and coordinating the annual inventory test counts (or annual inventory, if needed) at the Distribution Centers.
3. Retirement Audit (if required or needed) – Manage the annual audit by preparing audit schedules, providing auditors with substantiation and documentation, as well as providing a quarterly update to the Retirement Plan Trustees.
4. Budget Process – Provide year-to-date budget information, and assist in rolling up department budgets and compiling financial statements & 3-year projections.
5. Reporting – Prepare various reports for General Management and/or other users on a routine and/or ad hoc basis. May include collecting information, formatting information into reports and reviewing reports for accuracy.
6. Strategic Planning Process – Coordinate with General Management in the development, reporting and routine tracking of company strategic plans.
7. Payroll – Provide bi-weekly reporting of payroll hours, expense reimbursements, bonus calculations, and other HR benefit tracking data to the company's payroll service. Review and submit any and all quarterly and annual reports as may be required by various government agencies.
8. Facility Management – Coordinate with Branch Managers to ensure that all facilities and staff are in compliance with required health and safety regulations, that building mechanicals, lighting, plumbing, etc are operating as intended and routine building maintenance and groundskeeping is being performed where needed.

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Controller- Continued

Other

1. Establishes and maintains positive and constructive working relationships with other company personnel by serving as liaison to and establishing open lines of communication with managers.

Johnstone Supply believes that each employee's contribution should not be limited by the assigned responsibilities. Therefore, it is our expectation that each employee will offer his/her services wherever and whenever necessary to ensure the success of our endeavors.

Qualifications:

To perform this job successfully, an individual must be able to perform each essential duty satisfactorily. The requirements listed below are representative of the knowledge, skill, and/or ability required.

Reasonable accommodations may be made to enable individuals with disabilities to perform the essential functions.

Education and/or Experience:

Required:

- Bachelor's degree (B.S.) in Accounting/Finance from a four-year college or university.
- 6+ years of hands on financial managerial experience in a fast paced environment.

Preferred:

- CPA, CMA or MBA.

Job-Specific Knowledge, Skills and Abilities

1. Expertise of Generally Accepted Accounting Principles.
2. Expertise with networking technology and applications Microsoft Office Suite
3. Expertise with ERP systems.
4. Expertise of internal control systems.
5. Knowledge of Federal and State tax laws.
6. Knowledge of wholesale distribution industry.
7. Knowledge of and ability to apply human resource management principles, including hiring, training and orienting, coaching, and evaluating employees.
8. Ability to work with mathematical concepts such as probability and statistical inference. Ability to apply concepts such as fractions, percentages, ratios, and proportions to practical situations.
9. Ability to work with and develop new techniques for the use of technology in the streamlining of business operations.
10. Problem-solving skills: listening to, interpreting, and meeting the needs of others; diagnosing and rectifying problems.
11. Project management skills: establishing objectives, timelines and deadlines; action planning to meet deadlines; evaluating current and future positions.

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Controller- Continued

12. Ability to establish and continuously improve work procedures and systems.
13. Ability to collect data, evaluate results, and draw valid conclusions.
14. Ability to develop and use systems to organize and keep track of information.
15. Ability to attend to detail.
16. Ability to lead and influence others to meet department and organizational goals.
17. Ability to communicate across different individuals, departments and external parties.
18. Ability to write a verbal synopsis of financial status and activities.
19. Ability to effectively present information both orally and in writing.
20. Ability to listen to others to identify needs and concerns.

Work Behaviors

1. Ability to work with others in a team-based environment.
2. Works according to the company's Guiding Principles.
3. Maintains confidentiality of information.
4. Keeps the company's best interest in mind when considering or addressing issues.
5. Desire to support and meet the needs of customers, suppliers, other employees, and the Cooperative as a whole.

Physical Demands & Work Environment

The physical demands and work environment characteristics described here are representative of those an employee encounters while performing the essential functions of this job. Reasonable accommodations may be made to enable individuals with disabilities to perform the essential functions.

Physical Demands: While performing the duties of this job, the employee is regularly required to stand; walk; use hands to finger, handle, or feel; reach with hands and arms; climb or balance; talk or hear; and lift up to 50 pounds. The employee is occasionally required to stoop, kneel, crouch, or crawl; sit; and taste or smell. Specific vision requirements are close vision, distance vision, peripheral vision, depth perception, and the ability to adjust focus.

Work/Office Environment: Typical office building with most work performed at a desk using equipment such as PCs, phones, faxes, and paper files.

Skills Summary

Oral Communications Skills	Diplomacy
Reading Skills	Math Aptitude
Team Building Skills	Computer Skills
Customer/Vendor Relations	Project Management
Organization	Project Management
Written Communication Skills	Interpersonal Skills

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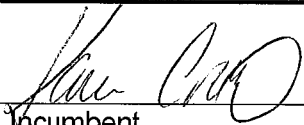
Controller- Continued

Time Management

Ability to lift up to 50 pounds

The Controller will maintain the strictest confidentiality on all corporate matters including, but not limited to: marketing strategies, operational structures, financial performance data and all subjects that may have an adverse effect on the company in the marketplace if they were made known outside the company.

Approved by:

 8/19/14
Incumbent Date

Supervisor

Date

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Employee Information Form

Employer to Complete

Client Number 0827-6139

Date 8/19/19

- Select One ☒ New Employee
☐ Update Current Employee Information
☐ Rehire Previous Employee on Paychex System

Employee Number 730

Department Number 101 Admin Support

Job Title Controller

Hire Date 8/19/19

Birth Date 10/28/1971

Workers' Compensation Class Code 8810

☒ Full-time ☐ Part-time ☐ Seasonal

Salary (Per Pay Period) \$3,538.46

OR

Hourly Rate 1 \$ _____ Hourly Rate 2 \$ _____ Hourly Rate 3 \$ _____

Payroll Frequency ☐ Weekly ☒ Bi-weekly ☐ Semi-monthly ☐ Monthly

Federal Exemptions 1 Additional \$ 0 Flat \$ 0

What state does this employee work in? New York

What state should be withholding for this employer? New York

State Exemptions 1 Additional \$ 0 Flat \$ 0

Are local taxes required? ☐ Yes - Town/City/County _____ ☒ No

Will direct deposit be sent to this employee? ☒ Yes ☐ No

Employee to Complete

Last Name Craft First Name Karen Initial C

Address 18 Highpoint Trail County Monroe

City Fairport State NY Zip Code 14450

Telephone Number (585) 703-4460 Sex ☐ Male ☒ Female

Work E-mail Address _____

Personal E-mail Address (optional) _____

Marital Status ☐ Single ☒ Married ☐ Married, but Withhold at Higher Single Rate

Social Security Number 069-56-7080

Emergency Contact Information

Name Michael Jabaut Relationship Spouse

Emergency Telephone (585) 530-0856



Notice and Acknowledgement of Pay Rate and Payday
Under Section 195.1 of the New York State Labor Law
Notice for Exempt Employees

1. Employer Information

Name:

The KL Group, Inc.

Doing Business As (DBA) Name(s):

Johnstone Supply of Central NY
Johnstone Supply of Rochester
Johnstone Supply of Syracuse

FEIN (optional):

Physical Address:

77 Halstead St. Suite 3
Rochester, NY 14610

Mailing Address:

Same as Physical Address

Phone: 585-482-8000

3. Employee's pay rate(s): State if pay is based on an hourly, salary, day rate, piece rate, or other basis.
\$3,538.46 Salary

Employers may not pay a non-hourly rate to a non-exempt employee in the Hospitality industry, except for commissioned salespeople.

4. Allowances taken:

☒ None

☐ Tips _____ per hour

☐ Meals _____ per meal

☐ Lodging _____

☐ Other _____

5. Regular payday: Friday

6. Pay is:

☐ Weekly

☒ Bi-weekly

☐ Other: _____

7. Overtime Pay Rate:

Most workers in NYS must receive at least 1½ times their regular rate of pay for all hours worked over 40 in a workweek, with few exceptions. A limited number of employees must only be paid overtime at 1½ times the minimum wage rate, or not at all.

This employee is exempt from overtime under the following exemption (optional):

8. Employee Acknowledgement:

On this day, I received notice of my pay rate, overtime rate (if eligible), allowances, and designated payday. I told my employer what my primary language is.

Check one:

☒ I have been given this pay notice in English because it is my primary language.

☐ My primary language is _____, I have been given this pay notice in English only, because the Department of Labor does not yet offer a pay notice form in my primary language.

Print Employee Name

Employee Signature

Date

Kenneth Livingston, President
Preparer Name and Title

The employee must receive a signed copy of this form. The employer must keep the original for 6 years.

Please note: It is unlawful for an employee to be paid less than an employee of the opposite sex for equal work. Employers also may not prohibit employees from discussing wages with their co-workers.

Form W-4 (2019)

Future developments. For the latest information about any future developments related to Form W-4, such as legislation enacted after it was published, go to www.irs.gov/FormW4.

Purpose. Complete Form W-4 so that your employer can withhold the correct federal income tax from your pay. Consider completing a new Form W-4 each year and when your personal or financial situation changes.

Exemption from withholding. You may claim exemption from withholding for 2019 if **both** of the following apply.

- For 2018 you had a right to a refund of **all** federal income tax withheld because you had **no** tax liability, **and**
- For 2019 you expect a refund of **all** federal income tax withheld because you expect to have **no** tax liability.

If you're exempt, complete **only** lines 1, 2, 3, 4, and 7 and sign the form to validate it. Your exemption for 2019 expires February 17, 2020. See Pub. 505, Tax Withholding and Estimated Tax, to learn more about whether you qualify for exemption from withholding.

General Instructions

If you aren't exempt, follow the rest of these instructions to determine the number of withholding allowances you should claim for withholding for 2019 and any additional amount of tax to have withheld. For regular wages, withholding must be based on allowances you claimed and may not be a flat amount or percentage of wages.

You can also use the calculator at www.irs.gov/W4App to determine your tax withholding more accurately. Consider

using this calculator if you have a more complicated tax situation, such as if you have a working spouse, more than one job, or a large amount of nonwage income not subject to withholding outside of your job. After your Form W-4 takes effect, you can also use this calculator to see how the amount of tax you're having withheld compares to your projected total tax for 2019. If you use the calculator, you don't need to complete any of the worksheets for Form W-4.

Note that if you have too much tax withheld, you will receive a refund when you file your tax return. If you have too little tax withheld, you will owe tax when you file your tax return, and you might owe a penalty.

Filers with multiple jobs or working spouses. If you have more than one job at a time, or if you're married filing jointly and your spouse is also working, read all of the instructions including the instructions for the Two-Earners/Multiple Jobs Worksheet before beginning.

Nonwage income. If you have a large amount of nonwage income not subject to withholding, such as interest or dividends, consider making estimated tax payments using Form 1040-ES, Estimated Tax for Individuals. Otherwise, you might owe additional tax. Or, you can use the Deductions, Adjustments, and Additional Income Worksheet on page 3 or the calculator at www.irs.gov/W4App to make sure you have enough tax withheld from your paycheck. If you have pension or annuity income, see Pub. 505 or use the calculator at www.irs.gov/W4App to find out if you should adjust your withholding on Form W-4 or W-4P.

Nonresident alien. If you're a nonresident alien, see Notice 1392, Supplemental Form W-4 Instructions for Nonresident Aliens, before completing this form.

Specific Instructions

Personal Allowances Worksheet

Complete this worksheet on page 3 first to determine the number of withholding allowances to claim.

Line C. Head of household please note: Generally, you may claim head of household filing status on your tax return only if you're unmarried and pay more than 50% of the costs of keeping up a home for yourself and a qualifying individual. See Pub. 501 for more information about filing status.

Line E. Child tax credit. When you file your tax return, you may be eligible to claim a child tax credit for each of your eligible children. To qualify, the child must be under age 17 as of December 31, must be your dependent who lives with you for more than half the year, and must have a valid social security number. To learn more about this credit, see Pub. 972, Child Tax Credit. To reduce the tax withheld from your pay by taking this credit into account, follow the instructions on line E of the worksheet. On the worksheet you will be asked about your total income. For this purpose, total income includes all of your wages and other income, including income earned by a spouse if you are filing a joint return.

Line F. Credit for other dependents. When you file your tax return, you may be eligible to claim a credit for other dependents for whom a child tax credit can't be claimed, such as a qualifying child who doesn't meet the age or social security number requirement for the child tax credit, or a qualifying relative. To learn more about this credit, see Pub. 972. To reduce the tax withheld from your pay by taking this credit into account, follow the instructions on line F of the worksheet. On the worksheet, you will be asked about your total income. For this purpose, total

Separate here and give Form W-4 to your employer. Keep the worksheet(s) for your records.

Form W-4 Department of the Treasury Internal Revenue Service		Employee's Withholding Allowance Certificate		OMB No. 1545-0074 2019	
1 Your first name and middle initial <i>Karen</i>		Last name <i>Craft</i>		2 Your social security number <i>069-36-7080</i>	
Home address (number and street or rural route) <i>18 Highland Trail</i>		3 ☐ Single ☒ Married ☐ Married, but withhold at higher Single rate. Note: If married filing separately, check "Married, but withhold at higher Single rate."			
City or town, state, and ZIP code <i>Fairport NY 14450</i>		4 If your last name differs from that shown on your social security card, check here. You must call 800-772-1213 for a replacement card. ☐			
5 Total number of allowances you're claiming (from the applicable worksheet on the following pages)				5 <i>1</i>	
6 Additional amount, if any, you want withheld from each paycheck				6 \$	
7 I claim exemption from withholding for 2019, and I certify that I meet both of the following conditions for exemption. • Last year I had a right to a refund of all federal income tax withheld because I had no tax liability, and • This year I expect a refund of all federal income tax withheld because I expect to have no tax liability. If you meet both conditions, write "Exempt" here 7					
Under penalties of perjury, I declare that I have examined this certificate and, to the best of my knowledge and belief, it is true, correct, and complete.					
Employee's signature (This form is not valid unless you sign it.) <i>Karen Craft</i>					
8 Employer's name and address (Employer: Complete boxes 8 and 10 if sending to IRS and complete boxes 8, 9, and 10 if sending to State Directory of New Hires.)				9 First date of employment	
				10 Employer identification number (EIN)	



Department of Taxation and Finance

Employee's Withholding Allowance Certificate**IT-2104**

New York State • New York City • Yonkers

First name and middle initial <u>Karen C.</u>		Last name <u>Craig</u>	Your social security number <u>064-50-7080</u>
Permanent home address (number and street or rural route) <u>18 Highpoint Trail</u>		Apartment number	Single or Head of household ☐ Married ☒
City, village, or post office <u>Farpoint</u>		State <u>NY</u>	ZIP code <u>14450</u>
Note: If married but legally separated, mark an X in the Single or Head of household box.			
Are you a resident of New York City? Yes ☐ No ☒			
Are you a resident of Yonkers? Yes ☐ No ☒			
Complete the worksheet on page 3 before making any entries.			
1 Total number of allowances you are claiming for New York State and Yonkers, if applicable (from line 20)			1 <u>1</u>
2 Total number of allowances for New York City (from line 35)			2
Use lines 3, 4, and 5 below to have additional withholding per pay period under special agreement with your employer.			
3 New York State amount			3 <u>1</u>
4 New York City amount			4
5 Yonkers amount			5

I certify that I am entitled to the number of withholding allowances claimed on this certificate.

Employee's signature <u>Karen Craig</u>	Date <u>8/19/19</u>
--	------------------------

Penalty – A penalty of \$500 may be imposed for any false statement you make that decreases the amount of money you have withheld from your wages. You may also be subject to criminal penalties.

Employee: detach this page and give it to your employer; keep a copy for your records.**Employer: Keep this certificate with your records.**

Mark an X in box A and/or box B to indicate why you are sending a copy of this form to New York State (see instructions):

A Employee claimed more than 14 exemption allowances for NYS A ☐B Employee is a new hire or a rehire ... B ☐ First date employee performed services for pay (mm-dd-yyyy) (see instr.):Are dependent health insurance benefits available for this employee? Yes ☐ No ☐

If Yes, enter the date the employee qualifies (mm-dd-yyyy):

Employer's name and address (Employer: complete this section only if you are sending a copy of this form to the NYS Tax Department.)	Employer identification number

Instructions**Changes effective for 2019**

Form IT-2104 has been revised for tax year 2019. Additional allowances are allowed for covered employees of employers who elected to pay the employer compensation expense tax and for employees who made contributions to a New York Charitable Gifts Trust Fund during 2018. The worksheet on page 3 and the charts beginning on page 4, used to compute withholding allowances or to enter an additional dollar amount on line(s) 3, 4, or 5, have been revised. If you previously filed a Form IT-2104 and used the worksheet or charts, you should complete a new 2019 Form IT-2104 and give it to your employer.

Who should file this form

This certificate, Form IT-2104, is completed by an employee and given to the employer to instruct the employer how much New York State (and New York City and Yonkers) tax to withhold from the employee's pay. The more allowances claimed, the lower the amount of tax withheld.

If you do not file Form IT-2104, your employer may use the same number of allowances you claimed on federal Form W-4. Due to differences in tax law, this may result in the wrong amount of tax withheld for New York State, New York City, and Yonkers. Complete Form IT-2104 each year and file it with your employer if the number of allowances you may claim

is different from federal Form W-4 or has changed. Common reasons for completing a new Form IT-2104 each year include the following:

- You started a new job.
- You are no longer a dependent.
- Your individual circumstances may have changed (for example, you were married or have an additional child).
- You moved into or out of NYC or Yonkers.
- You itemize your deductions on your personal income tax return.
- You claim allowances for New York State credits.
- You owed tax or received a large refund when you filed your personal income tax return for the past year.
- Your wages have increased and you expect to earn \$107,650 or more during the tax year.
- The total income of you and your spouse has increased to \$107,650 or more for the tax year.
- You have significantly more or less income from other sources or from another job.
- You no longer qualify for exemption from withholding.

POST-OFFER SELF-IDENTIFICATION FORM

Name: Kavan Craft Date: 8/19/19

Johnstone Supply is an Equal Opportunity Employer committed to the policies and principles of Non-Discrimination and Affirmative Action.

GENDER: (Check one)

☐ Male

☒ Female

RACE/ETHNICITY:

Are you Hispanic or Latino?

Yes ☐

No ☒

If you answered "No" to the question "Are you Hispanic or Latino?" please check the applicable race box (check one):

☒ White (Not Hispanic or Latino)

☐ American Indian or Alaska Native (Not Hispanic or Latino)

☐ Asian (Not Hispanic or Latino)

☐ Native Hawaiian or Other Pacific Islander (Not Hispanic or Latino)

☐ Black or African American (Not Hispanic or Latino)

☐ Two or More Races – All persons who identify with more than one of the above five races. (Not Hispanic or Latino)

If you selected "Two or More Races" please identify the race with which you primarily identify:

☒ White (Not Hispanic or Latino)

☐ American Indian or Alaska Native (Not Hispanic or Latino)

☐ Asian (Not Hispanic or Latino)

☐ Native Hawaiian or Other Pacific Islander (Not Hispanic or Latino)

☐ Black or African American (Not Hispanic or Latino)

VETERAN STATUS: (Check all that apply)

☒ I am **not** a veteran under any of the categories below. **OR** I am **not** a veteran of the U.S. Armed Forces.

☐ I am a **Disabled Veteran** – (1) A veteran of the U.S. military, ground, naval or air service who is entitled to compensation (or who but for the receipt of military retired pay would be entitled to compensation) under laws administered by the Secretary of Veterans Affairs, or (2) A person who was discharged or released from active duty because of a service-connected disability.

☐ I am a **Recently Separated Veteran** – Any veteran during the three-year period beginning on the date of such veteran's discharge or release from active duty in the U.S. military service.

Enter Date of Separation: _____

☐ I am an **Armed Forces Service Medal Veteran** – Any veteran who, while serving on active duty in the U.S. military, ground, naval or air service, participated in a United States military operation for which an Armed Forces service medal was awarded pursuant to Executive Order 12985.

☐ I am an **Other Protected Veteran** – A veteran who served on active duty in the U.S. military, ground, naval or air service during a war or in a campaign or expedition for which a campaign badge has been authorized, under the laws administered by the Department of Defense.



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2018 BENEFITS OVERVIEW – MANAGER *

BENEFIT	DESCRIPTION	EMPLOYEE CONTRIBUTION	VESTMENT PERIOD
Health Insurance offered through Excellus and MVP HealthCare (Premium Only Plan-Section 125)	Excellus SimplyBlue Plus Gold 6 - Company covers 100% of the equivalent Silver 3 premium cost and provides a Health Reimbursement Account (HRA) in the amount of \$1,400 single/\$4,300 family. MVP Liberty Silver 3 - Company covers 100% of the premium cost and provides a Health Reimbursement Account (HRA) in the amount of \$2,200 single/\$5,400 family. Excellus SimplyBlue Plus Bronze 3 - Company covers 100% of the premium cost and provides a Health Reimbursement Account (HRA) in the amount of \$2,000 single/\$5,000 family.	Balance of premium costs <u>not</u> covered by the Company plus applicable out of pocket annual maximum of \$2,800 single/\$5,600 family less employer provided HRA. Co-pays up to annual out of pocket maximum of \$4,800 single/\$9,600 family less supplemental employer provided. 30% co-insurance up to annual maximum of \$6,550 single/\$13,100 family less employer provided HRA.	None
Health Club Allowance	Company will pay 25% of annual dues to a maximum of \$100/year towards an active membership in a health club subject to prior approval.	Any portion over company contribution.	Upon the completion of Ninety (90) days
Working Advantage®	Online employee discounts and rewards program featuring some of the most respected vendors in the country for shopping, entertainment, theatre and events.	N/A	Upon the completion of Ninety (90) days
BalanceWorks®	A fully integrated work/life Employee Assistance Program (EAP), designed to help effectively balance the competing demands of work and life before personal problems affect professional performance.	N/A	Upon the completion of Ninety (90) days
Flexible Spending Account (Section 125)	Pre-tax budgeting tool to help pay out-of-pocket medical, dental, and dependent care expenses not covered by other company insurance benefits.	Voluntary contribution up to \$2550 annually for medical; \$5,000 dependent care deduction.	One (1) year, over 21 years of age, and works more than 1500 hours per year.

BENEFITS OVERVIEW- (Continued)

BENEFIT	DESCRIPTION	EMPLOYEE CONTRIBUTION	VESTMENT PERIOD
Supplemental Short-Term Disability offered through AFLAC	Provides earnings coverage for up to 6 months of Temporary Disability when unable to work. This benefit supplements coverage for which you are entitled under NYS Disability Law.	100%	First of the Month Following Ninety (90) days
Personal Accident Insurance (Premium Only Plan-Section 125) offered through AFLAC	Pre-tax coverage for benefits payable to you and/or your family in the event of an injury caused by a covered accident including but not limited to travel costs, doctor/hospital visits and physical therapy, etc.	100%	First of the Month Following Ninety (90) days
Personal Cancer Insurance (Premium Only Plan-Section 125) offered through AFLAC	Pre-tax coverage for benefits payable to you and/or your family in the event of a first occurrence determination of cancer. Benefits paid to you for use at your discretion to cover expenditures over and above those provided by major medical.	100%	First of the Month Following Ninety (90) days
Dental Insurance (Premium Only Plan-Section 125)	Pre-tax coverage of dental expenditures for you and/or your family.	100%	First of the Month Following Ninety (90) days
Group Term Life Insurance and AD&D Coverage offered through Principal	Life insurance coverage for you of \$50,000. Accidental Death & Dismemberment coverage for you of \$50,000.	100% for supplemental coverage <u>only</u> in excess of \$50,000 to a maximum of \$300,000 and 3x Salary or \$50,000 for AD&D. Spousal and Child(ren) insurance available.	First of the Month Following Ninety (90) days
National Holidays	6 paid days annually.	N/A	None
Paid Time Off	14 Days per year; weeks are not to be taken consecutively. Additional 15 th floating PTO day in recognition of your birthday; to be used during the month of your birthday.	N/A	First of the Month Following six (6) months service. 15 th PTO day eligible after 3 years of service.
Bonus	<u>Negotiable</u> - [A performance bonus based on the achievement of qualitative and quantitative goals to be determined within the first 180-360 days of your employment.]	N/A	Six (6) – twelve (12) months
Tuition Reimbursement†	Company will pay up to 100% of tuition for job-related courses subject to prior approval.	Any portion over company contribution.	One (1) year
Savings and Investment Plan	401K defined contribution plan. Company invests on behalf of each employee a percentage of annual gross wages for all plan-eligible employees in accordance with the following schedule:	Deferral of up to 25% of annual gross wages but not to exceed \$18,000. Additional \$6,000 catch-up contribution for	One (1) year, over 21 years of age, and works more than 1000 hours per year.

BENEFITS OVERVIEW- (Continued)

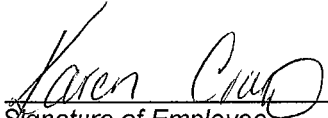
	<u>Employee Contribution</u>	<u>Employer Match</u>	
	1%	1%	employees aged 50 and over.
	2%	2%	Pre-tax and after-tax
	3%	3%	(Roth) programs
	4%	3.5%	available.
	5%	4%	

* These benefits do not constitute a contract with the employee and may be subject to change without notice.

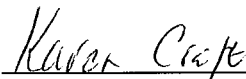
† Subject to prior approval. Employee must achieve a minimum grade point average. Actual percentage is at the discretion of management.

NOTE: All Johnstone Supply employees are employed at will.

I have received a copy of this document.



Signature of Employee



Name of Employee (please print) and date

MAY TERMINATE THE EMPLOYMENT
RELATIONSHIP AT ANY TIME, FOR ANY REASON,
WITH OR WITHOUT CAUSE OR NOTICE. NOTHING
IN THIS EMPLOYEE HANDBOOK OR IN ANY
DOCUMENT OR STATEMENT, WRITTEN OR ORAL,
SHALL LIMIT THE RIGHT TO TERMINATE
EMPLOYMENT AT-WILL. NO OFFICER, EMPLOYEE
OR REPRESENTATIVE OF THE COMPANY IS
AUTHORIZED TO ENTER INTO AN AGREEMENT—
EXPRESS OR IMPLIED—WITH ME OR ANY
EMPLOYEE FOR EMPLOYMENT FOR A SPECIFIED
PERIOD OF TIME. ANY AGREEMENT TO
EMPLOYMENT FOR A SPECIFIED PERIOD OF TIME
WILL BE PUT INTO WRITING AND SIGNED BY THE
PRESIDENT OF THE COMPANY.

I understand that this Employee Handbook refers to current benefit plans maintained by the company and that I must refer to the actual plan documents and summary plan descriptions as these documents are controlling.

I also understand that if a written contract is inconsistent with the Employee Handbook, the written contract is controlling.

If I have questions regarding the content or interpretation of this Employee Handbook, I will ask my supervisor or a member of management.

NAME Valer Craft
DATE 8/19/19
EMPLOYEE SIGNATURE 

04/18

THIS COMPANY IS AN AT-WILL EMPLOYER. THIS
MEANS THAT REGARDLESS OF ANY PROVISION IN
THIS EMPLOYEE HANDBOOK, THE COMPANY OR I
MAY TERMINATE THE EMPLOYMENT
RELATIONSHIP AT ANY TIME, FOR ANY REASON,
WITH OR WITHOUT CAUSE OR NOTICE. NOTHING
IN THIS EMPLOYEE HANDBOOK OR IN ANY
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AUTHORIZED TO ENTER INTO AN AGREEMENT—
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EMPLOYEE FOR EMPLOYMENT FOR A SPECIFIED
PERIOD OF TIME. ANY AGREEMENT TO
EMPLOYMENT FOR A SPECIFIED PERIOD OF TIME
WILL BE PUT INTO WRITING AND SIGNED BY THE
PRESIDENT OF THE COMPANY.

I understand that this Employee Handbook refers to current benefit plans maintained by the company and that I must refer to the actual plan documents and summary plan descriptions as these documents are controlling.

I have read and understand the Paid Time Off (PTO) Policy in this Employee Handbook.

Initials  Date 8/19/19

I also understand that if a written contract is inconsistent with the Employee Handbook, the written contract is controlling.

04/18



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Sexual Harassment **Prevention Policy**

Johnstone Supply of Central NY is committed to maintaining a workplace free from sexual harassment. Sexual harassment is a form of workplace discrimination. All employees are required to work in a manner that prevents sexual harassment in the workplace. This Policy is one component of Johnstone Supply of Central NY's commitment to a discrimination-free work environment. Sexual harassment is against the law¹ and all employees have a legal right to a workplace free from sexual harassment and employees are urged to report sexual harassment by filing a complaint internally with Johnstone Supply of Central NY's HR, Controller or President.

Employees can also file a complaint with a government agency or in court under federal, state or local antidiscrimination laws.

Policy:

1. Johnstone Supply of Central NY's policy applies to all employees, applicants for employment, interns, whether paid or unpaid, contractors and persons conducting business, regardless of immigration status, with Johnstone Supply of Central NY. In the remainder of this document, the term "employees" refers to this collective group.
2. Sexual harassment will not be tolerated. Any employee or individual covered by this policy who engages in sexual harassment or retaliation will be subject to remedial and/or disciplinary action (e.g., counseling, suspension, termination).
3. Retaliation Prohibition: No person covered by this Policy shall be subject to adverse action because the employee reports an incident of sexual harassment, provides information, or otherwise assists in any investigation of a sexual harassment complaint. Johnstone Supply of Central NY will not tolerate such retaliation against anyone who, in good faith, reports or provides information about suspected sexual harassment. Any employee of Johnstone Supply of Central NY who retaliates against anyone involved in a sexual harassment investigation will be subjected to disciplinary action, up to and including termination. All employees paid or unpaid interns, or non-employees² working in the workplace who believe they have been subject to such retaliation should inform a supervisor, manager, HR, Controller or President. All employees, paid or unpaid interns or non-employees who believe they have been a target of such retaliation may also seek relief in other available forums, as explained below in the section on Legal Protections.

¹ While this policy specifically addresses sexual harassment, harassment because of and discrimination against persons of all protected classes is prohibited. In New York State, such classes include age, race, creed, color, national origin, sexual orientation, military status, sex, disability, marital status, domestic violence victim status, gender identity and criminal history.

² A non-employee is (or is employed by) a contractor, subcontractor, vendor, consultant, or anyone providing services in the workplace. Protected non-employees include persons commonly referred to as independent contractors, "gig" workers and temporary workers. Also included are persons providing equipment repair, cleaning services or any other services provided pursuant to a contract with the employer.



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4. Sexual harassment is offensive, is a violation of our policies, is unlawful, and may subject Johnstone Supply of Central NY to liability for harm to targets of sexual harassment. Harassers may also be individually subject to liability. Employees of every level who engage in sexual harassment, including managers and supervisors who engage in sexual harassment or who allow such behavior to continue, will be penalized for such misconduct.
5. Johnstone Supply of Central NY will conduct a prompt and thorough investigation that ensures due process for all parties, whenever management receives a complaint about sexual harassment, or otherwise knows of possible sexual harassment occurring. Johnstone Supply of Central NY will keep the investigation confidential to the extent possible. Effective corrective action will be taken whenever sexual harassment is found to have occurred. All employees, including managers and supervisors, are required to cooperate with any internal investigation of sexual harassment.
6. All employees are encouraged to report any harassment or behaviors that violate this policy. Johnstone Supply of Central NY will provide all employees a complaint form for employees to report harassment and file complaints.
7. Managers and supervisors are **required** to report any complaint that they receive, or any harassment that they observe or become aware of, to HR, Controller or President.
8. This policy applies to all employees, paid or unpaid interns, and non-employees and all must follow and uphold this policy. This policy must be provided to all employees and should be posted prominently in all work locations to the extent practicable (for example, in a main office, not an offsite work location) and be provided to employees upon hiring.

What Is "Sexual Harassment"?

Sexual harassment is a form of sex discrimination and is unlawful under federal, state, and (where applicable) local law. Sexual harassment includes harassment on the basis of sex, sexual orientation, self-identified or perceived sex, gender expression, gender identity and the status of being transgender.

Sexual harassment includes unwelcome conduct which is either of a sexual nature, or which is directed at an individual because of that individual's sex when:

- Such conduct has the purpose or effect of unreasonably interfering with an individual's work performance or creating an intimidating, hostile or offensive work environment, even if the reporting individual is not the intended target of the sexual harassment;
- Such conduct is made either explicitly or implicitly a term or condition of employment; or



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- Submission to or rejection of such conduct is used as the basis for employment decisions affecting an individual's employment.

A sexually harassing hostile work environment includes, but is not limited to, words, signs, jokes, pranks, intimidation or physical violence which are of a sexual nature, or which are directed at an individual because of that individual's sex. Sexual harassment also consists of any unwanted verbal or physical advances, sexually explicit derogatory statements or sexually discriminatory remarks made by someone which are offensive or objectionable to the recipient, which cause the recipient discomfort or humiliation, which interfere with the recipient's job performance.

Sexual harassment also occurs when a person in authority tries to trade job benefits for sexual favors. This can include hiring, promotion, continued employment or any other terms, conditions or privileges of employment. This is also called "quid pro quo" harassment.

Any employee who feels harassed should report so that any violation of this policy can be corrected promptly. Any harassing conduct, even a single incident, can be addressed under this policy.

Examples of sexual harassment

The following describes some of the types of acts that may be unlawful sexual harassment and that are strictly prohibited:

- Physical acts of a sexual nature, such as:
 - Touching, pinching, patting, kissing, hugging, grabbing, brushing against another employee's body or poking another employee's body;
 - Rape, sexual battery, molestation or attempts to commit these assaults.
- Unwanted sexual advances or propositions, such as:
 - Requests for sexual favors accompanied by implied or overt threats concerning the target's job performance evaluation, a promotion or other job benefits or detriments;
 - Subtle or obvious pressure for unwelcome sexual activities.
- Sexually oriented gestures, noises, remarks or jokes, or comments about a person's sexuality or sexual experience, which create a hostile work environment.
- Sex stereotyping occurs when conduct or personality traits are considered inappropriate simply because they may not conform to other people's ideas or perceptions about how individuals of a particular sex should act or look.
- Sexual or discriminatory displays or publications anywhere in the workplace, such as:
 - Displaying pictures, posters, calendars, graffiti, objects, promotional material, reading materials or other materials that are sexually demeaning or pornographic. This includes



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such sexual displays on workplace computers or cell phones and sharing such displays while in the workplace.

- Hostile actions taken against an individual because of that individual's sex, sexual orientation, gender identity and the status of being transgender, such as:
 - Interfering with, destroying or damaging a person's workstation, tools or equipment, or otherwise interfering with the individual's ability to perform the job;
 - Sabotaging an individual's work;
 - Bullying, yelling, name-calling.

Who can be a target of sexual harassment?

Sexual harassment can occur between any individuals, regardless of their sex or gender. New York Law protects employees, paid or unpaid interns, and non-employees, including independent contractors, and those employed by companies contracting to provide services in the workplace. Harassers can be a superior, a subordinate, a coworker or anyone in the workplace including an independent contractor, contract worker, vendor, client, customer or visitor.

Where can sexual harassment occur?

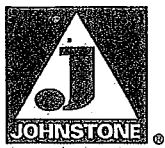
Unlawful sexual harassment is not limited to the physical workplace itself. It can occur while employees are traveling for business or at employer sponsored events or parties. Calls, texts, emails, and social media usage by employees can constitute unlawful workplace harassment, even if they occur away from the workplace premises, on personal devices or during non-work hours.

Retaliation

Unlawful retaliation can be any action that could discourage a worker from coming forward to make or support a sexual harassment claim. Adverse action need not be job-related or occur in the workplace to constitute unlawful retaliation (e.g., threats of physical violence outside of work hours).

Such retaliation is unlawful under federal, state, and (where applicable) local law. The New York State Human Rights Law protects any individual who has engaged in "protected activity." Protected activity occurs when a person has:

- made a complaint of sexual harassment, either internally or with any anti-discrimination agency;
- testified or assisted in a proceeding involving sexual harassment under the Human Rights Law or other anti-discrimination law;
- opposed sexual harassment by making a verbal or informal complaint to management, or by



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simply informing a supervisor or manager of harassment;

- reported that another employee has been sexually harassed; or
- encouraged a fellow employee to report harassment.

Even if the alleged harassment does not turn out to rise to the level of a violation of law, the individual is protected from retaliation if the person had a good faith belief that the practices were unlawful. However, the retaliation provision is not intended to protect persons making intentionally false charges of harassment.

Reporting Sexual Harassment

Preventing sexual harassment is everyone's responsibility. Johnstone Supply of Central NY cannot prevent or remedy sexual harassment unless it knows about it. Any employee paid or unpaid intern or non-employee who has been subjected to behavior that may constitute sexual harassment is encouraged to report such behavior to a supervisor, manager, HR, Controller or President. Anyone who witnesses or becomes aware of potential instances of sexual harassment should report such behavior to a supervisor, manager, HR, Controller or President.

Reports of sexual harassment may be made verbally or in writing. A form for submission of a written complaint is attached to this Policy, and all employees are encouraged to use this complaint form. Employees who are reporting sexual harassment on behalf of other employees should use the complaint form and note that it is on another employee's behalf.

Employees, paid or unpaid interns or non-employees who believe they have been a target of sexual harassment may also seek assistance in other available forums, as explained below in the section on Legal Protections.

Supervisory Responsibilities

All supervisors and managers who receive a complaint or information about suspected sexual harassment, observe what may be sexually harassing behavior or for any reason suspect that sexual harassment is occurring, **are required** to report such suspected sexual harassment to the CFO or President.

In addition to being subject to discipline if they engaged in sexually harassing conduct themselves, supervisors and managers will be subject to discipline for failing to report suspected sexual harassment or otherwise knowingly allowing sexual harassment to continue.

Supervisors and managers will also be subject to discipline for engaging in any retaliation.



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Complaint and Investigation of Sexual Harassment

All complaints or information about sexual harassment will be investigated, whether that information was reported in verbal or written form. Investigations will be conducted in a timely manner and will be confidential to the extent possible.

An investigation of any complaint, information or knowledge of suspected sexual harassment will be prompt and thorough, commenced immediately and completed as soon as possible. The investigation will be kept confidential to the extent possible. All persons involved, including complainants, witnesses and alleged harassers will be accorded due process, as outlined below, to protect their rights to a fair and impartial investigation.

Any employee may be required to cooperate as needed in an investigation of suspected sexual harassment. Johnstone Supply of Central NY will not tolerate retaliation against employees who file complaints, support another's complaint or participate in an investigation regarding a violation of this policy.

While the process may vary from case to case, investigations should be done in accordance with the following steps:

- Upon receipt of complaint, HR, Controller or President will conduct an immediate review of the allegations, and take any interim actions (e.g., instructing the respondent to refrain from communications with the complainant), as appropriate. If complaint is verbal, encourage the individual to complete the "Complaint Form" in writing. If he or she refuses, prepare a Complaint Form based on the verbal reporting.
- If documents, emails or phone records are relevant to the investigation, take steps to obtain and preserve them.
- Request and review all relevant documents, including all electronic communications.
- Interview all parties involved, including any relevant witnesses;
- Create a written documentation of the investigation (such as a letter, memo or email), which contains the following:
 - A list of all documents reviewed, along with a detailed summary of relevant documents;
 - A list of names of those interviewed, along with a detailed summary of their statements;
 - A timeline of events;
 - A summary of prior relevant incidents, reported or unreported; and
 - The basis for the decision and final resolution of the complaint, together with any corrective action(s).



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- Keep the written documentation and associated documents in a secure and confidential location.
- Promptly notify the individual who reported and the individual(s) about whom the complaint was made of the final determination and implement any corrective actions identified in the written document.
- Inform the individual who reported of the right to file a complaint or charge externally as outlined in the next section.

Legal Protections And External Remedies

Sexual harassment is not only prohibited by Johnstone Supply of Central NY but is also prohibited by state, federal, and, where applicable, local law.

Aside from the internal process at Johnstone Supply of Central NY, employees may also choose to pursue legal remedies with the following governmental entities. While a private attorney is not required to file a complaint with a governmental agency, you may seek the legal advice of an attorney.

In addition to those outlined below, employees in certain industries may have additional legal protections.

State Human Rights Law (HRL)

The Human Rights Law (HRL), codified as N.Y. Executive Law, art. 15, § 290 et seq., applies to all employers in New York State with regard to sexual harassment, and protects employees, paid or unpaid interns and non-employees, regardless of immigration status. A complaint alleging violation of the Human Rights Law may be filed either with the Division of Human Rights (DHR) or in New York State Supreme Court.

Complaints with DHR may be filed any time **within one year** of the harassment. If an individual did not file at DHR, they can sue directly in state court under the HRL, **within three years** of the alleged sexual harassment. An individual may not file with DHR if they have already filed a HRL complaint in state court.

Complaining internally to Johnstone Supply of Central NY does not extend your time to file with DHR or in court. The one year or three years is counted from date of the most recent incident of harassment.



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You do not need an attorney to file a complaint with DHR, and there is no cost to file with DHR.

DHR will investigate your complaint and determine whether there is probable cause to believe that sexual harassment has occurred. Probable cause cases are forwarded to a public hearing before an administrative law judge. If sexual harassment is found after a hearing, DHR has the power to award relief, which varies but may include requiring your employer to take action to stop the harassment, or redress the damage caused, including paying of monetary damages, attorney's fees and civil fines.

DHR's main office contact information is: NYS Division of Human Rights, One Fordham Plaza, Fourth Floor, Bronx, New York 10458. You may call (718) 741-8400 or visit: www.dhr.ny.gov.

Contact DHR at (888) 392-3644 or visit dhr.ny.gov/complaint for more information about filing a complaint. The website has a complaint form that can be downloaded, filled out, notarized and mailed to DHR. The website also contains contact information for DHR's regional offices across New York State.

Civil Rights Act of 1964

The United States Equal Employment Opportunity Commission (EEOC) enforces federal anti-discrimination laws, including Title VII of the 1964 federal Civil Rights Act (codified as 42 U.S.C. § 2000e et seq.). An individual can file a complaint with the EEOC anytime within 300 days from the harassment. There is no cost to file a complaint with the EEOC. The EEOC will investigate the complaint and determine whether there is reasonable cause to believe that discrimination has occurred, at which point the EEOC will issue a Right to Sue letter permitting the individual to file a complaint in federal court.

The EEOC does not hold hearings or award relief but may take other action including pursuing cases in federal court on behalf of complaining parties. Federal courts may award remedies if discrimination is found to have occurred. In general, private employers must have at least 15 employees to come within the jurisdiction of the EEOC.

An employee alleging discrimination at work can file a "Charge of Discrimination." The EEOC has district, area, and field offices where complaints can be filed. Contact the EEOC by calling 1-800-669-4000 (TTY: 1-800-669-6820), visiting their website at www.eeoc.gov or via email at info@eeoc.gov.

If an individual filed an administrative complaint with DHR, DHR will file the complaint with the EEOC to preserve the right to proceed in federal court.

Local Protections

Many localities enforce laws protecting individuals from sexual harassment and discrimination. An individual should contact the county, city or town in which they live to find out if such a law exists. For



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example, employees who work in New York City may file complaints of sexual harassment with the New York City Commission on Human Rights. Contact their main office at Law Enforcement Bureau of the NYC Commission on Human Rights, 40 Rector Street, 10th Floor, New York, New York; call 311 or (212) 306-7450; or visit www.nyc.gov/html/cchr/html/home/home.shtml.

Contact the Local Police Department

If the harassment involves unwanted physical touching, coerced physical confinement or coerced sex acts, the conduct may constitute a crime. Contact the local police department.

Employee Signature: *Karen Craft*

Print Name: Karen Craft

Date: 8/19/19

Sexual Harassment Quiz

True or False

- F 1. Sexual harassment complaints are generally false or unjustified.
- T 2. Sexual harassment can occur outside the work site and still be considered work related. Incidents that occur at retirement parties and office socials or in training are some of the situations where work related harassment occurs.
- T 3. Terms of endearment with co-workers, i.e. "honey," "dear" are considered verbal abuse and charges can be brought up against the employee.
- F 4. Women in professional jobs (teachers, lawyers, engineers, doctors, etc.) are not as likely to be sexually harassed as women in blue-collar jobs (factory workers, secretaries, truck drivers, etc.)
- F 5. If he didn't like the sexual attention, but she meant it only as flirting or joking, then it was not sexual harassment.
- F 6. Sexual harassment is not limited to physical contact. It can occur any time that an individual is uncomfortable with another person's approaches, comments or discussions.
- F 7. Due to strict privacy laws, supervisors cannot monitor employee email or be found liable for sexual harassment via email by their employees.
- F 8. Sexual harassment in the workplace is a women's issue.
- T 9. Quid Pro Quo harassment is a form of sexual harassment when there is a request or demand of sexual favors in exchange for employment benefits or threatening reprisals if the favors are not given.
- T 10. Friendly flirting is not sexual harassment when flirting is practiced between mutually consenting individuals who are equal in power or authority.
- T 11. Employees claiming sexual harassment who are aware of but fail to take advantage of company policies or resources designed to prevent, correct or eliminate harassment have much weaker cases than those who do.
- F 12. In order for it to be determined sexual harassment, the victim has to be of the opposite sex of the harasser.
- T 13. An employee witnesses another employee being harassed. Even though this involved a co-worker, the witness can be considered a victim in this case.



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Smoke and Vape-Free Workplace Policy

Introduction

Johnstone Supply of CNY is committed to providing a safe and healthy workplace and to promoting the health and well-being of its employees. As such, the following policy has been adopted and applies to all employees of Johnstone Supply of CNY.

Policy

It is the policy of Johnstone Supply of CNY to prohibit smoking and vaping on all company premises to provide a safe and healthy work environment for all employees. Smoking is defined as the "act of lighting, smoking or carrying a lighted or smoldering cigar, cigarette or pipe of any kind." Vaping refers to the use of electronic nicotine delivery systems or electronic smoking devices such as e-cigarettes, e-pipes, e-hookahs and e-cigars.

Scope

This policy applies to:

- All areas of buildings occupied by company employees.
- All company-sponsored offsite conferences and meetings.
- All vehicles owned or leased by the company.
- All company employees.
- All visitors (customers and vendors) to company premises.
- All contractors and consultants and/or their employees working on company premises.
- All temporary employees.
- All student interns.

Smoking and vaping are permitted *only* in the following designated outdoor areas:



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Procedures

Employees who violate this policy will be subject to disciplinary action up to and including immediate discharge.

A process is in place for resolving complaints about the smoke- and vape-free policy:

- Complaints about the application of this policy should be brought to the attention of the Human Resources, Controller or the President for resolution.
- The complaint should be submitted in writing and should identify specific objections.
- Johnstone Supply of CNY will investigate the complaint and resolve it in accordance with the policy.

No employee shall suffer any form of retaliation for raising a complaint or asking a question about this policy.

This policy is intended to comply with the requirements of [title of ordinance].

Statement of Understanding

I have read and fully understand the terms of this policy.

I understand that any violation of this policy will result in disciplinary action up to and including immediate discharge.

I understand that Johnstone Supply of CNY reserves the right to make changes to this policy as needed.

Karen Craft

Employee Name

[Signature]

Employee Signature

8/19/19

Date



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EMPLOYEE CONFIDENTIALITY AGREEMENT

As a Member of **JOHNSTONE SUPPLY, Inc.** (the "Cooperative"), **The KL Group, Inc.**, doing business as **JOHNSTONE SUPPLY of Central NY [Rochester/Syracuse]**, is bound by the terms of the Bylaws of the Cooperative, and Patronage Agreement in place between our company and the Cooperative. Under these Bylaws and Patronage Agreement, we are prohibited from discussing, indicating, or disclosing all correspondences, documents, price information and other materials furnished to us by the Cooperative (other than those sales materials designated by the Cooperative for our customers) ("Confidential Information"). For example, we cannot discuss with or disclose to customers or vendors the costs for which we obtain products from the Cooperative or our vendors, or the terms of the specific programs we have with the Cooperative or these vendors. Such disclosure is grounds for termination of our Membership with the Cooperative and may make us liable for any damages as a result of a breach of confidentiality.

As employees of **JOHNSTONE SUPPLY of Central NY [Rochester/Syracuse]**, we must conduct ourselves accordingly to protect the security and confidentiality of all such Confidential Information. Any breach of confidentiality by an employee is grounds for termination in accordance with company procedures. Following are the rules of conduct regarding confidentiality:

1. Never discuss our costs for products with anyone outside the company. If you are asked, merely say, "I don't know".
2. Never leave any publications, letters, or written material that discloses our costs, terms, or other Confidential Information anywhere other than in a secure place on the business premises.
3. No copies, electronic or paper, are to be made of any Confidential Information under any circumstances.
4. Never disclose quantities of merchandise that we purchase.
5. No employee is to accept any gifts, gratuities, or other incentives from any vendor, at any time.

Upon termination of employment, employees must return all documentation developed or acquired in the course of employment, including all copies of Confidential Information. This includes cost and program information from vendors, mailing lists, customer lists, accounting data, or any other material that has been deemed confidential.

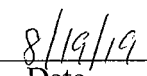
I understand and agree to the terms of the confidentiality policy of **The KL Group, Inc.**, doing business as **JOHNSTONE SUPPLY of Central NY [Rochester/Syracuse]**.



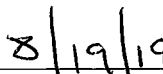
Employee



President, The KL Group, Inc.



Date



Date



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AUTHORIZATION TO DEDUCT EXPENSES

As a benefit of employment, you are accorded the opportunity to purchase product out of the catalog of **JOHNSTONE SUPPLY** at the cost prevailing at time of purchase. Unless authorized, purchases are intended for personal or immediate family use only.

In addition, you will automatically be set up with a credit limit allowing you to charge purchases with net 30-day terms. Having this benefit will allow you to use **JOHNSTONE SUPPLY of Central NY [Rochester/Syracuse]** as a credit reference when applying for credit elsewhere. Your credit limit will be reviewed periodically and adjusted accordingly.

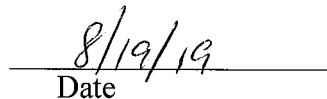
Obviously, abuse of this privilege puts this benefit at risk for you. Payment of obligations beyond terms and without previous authorized consent will suspend your benefit. Upon termination of employment, this benefit is voided, and all outstanding obligations are immediately due. Finance charges and collection expenses, if any, may also apply.

Since this is a benefit and a privilege of employment with **JOHNSTONE SUPPLY of Central NY** you are not obligated to use it, however, should you wish to take advantage of this unique opportunity you are asked to authorize the company to collect past due expenses by payroll deduction.

* * * *

I have read the information above and do hereby authorize **The KL Group, Inc., d/b/a JOHNSTONE SUPPLY of Central NY [Rochester/Syracuse]** the right to deduct any past due expenditures for company services or products acquired during the course of my employment for personal use from my paycheck.


Employee


Date

I have read the information above and do **not** wish to partake of the benefit offered to me.

Employee

Date

Johnstone Supply Lead Store #141

Driver Information Request

Today's Date: 8/19/19

To: Kibble & Prentice – Marie Kelley or Liz Suckow
EMAIL: marie.kelley@kpc.com or liz.suckow@kpc.com
FAX: (610) 362-8518

From: Anna Maynard / Johnstone Supply

To: Johnstone Supply and Kibble & Prentice:

I, Kaver Craft
Employee or Prospective Employee Name (Printed)

voluntarily and knowingly authorize Kibble & Prentice, now and in the future while I am employed by Johnstone Supply Co., to check both my employment related driving record and my non-employment driving record, and to make that information available to Johnstone Supply Co. and its designated insurance carrier.

I also voluntarily and knowingly unconditionally release any named or unnamed informant from any and all liability resulting from the furnishing of this information.

CDL License? ☐ Yes ☒ No

Drivers License Number:

4	6	1	3	4	3	2	5	2				
---	---	---	---	---	---	---	---	---	--	--	--	--

State of Licensing New York

Date of Birth 10/28/1971

If other state drivers license enter here _____

Kaver Craft
Signature of Employee or Prospective Employee





3-New Employee Document Checklist

(Instructions: Send completed form to HR
with other documents required below)

Employee

Karen Craft

Date

8/19/2019

Form	Form Name or Description	Specific Action Required	Documentation Required	Signature/Date Required	Routing	Supervisor Initials
W-4	Federal Withholding Form	Fill out	No	Yes	Send Original to HR	QJM
IT-2104	NYS Withholding Form	Fill out	No	Yes	Send Original to HR	QJM
I-9	Employment Eligibility Verification Form	Fill out	Yes	Yes	Send Original to HR with Documentation Copy	QJM
LS54/LS59	NYS Notice of Acknowledgment of Pay Rate and Payday	Read	No	Yes	Send Original to HR	QJM
--	NYS Notice of Slsmn Compensation	Read	No	Yes	Send Original to HR	N/A
DP002	Paychex Direct Deposit Application	Fill out	Yes	Yes	Send Original to HR with Documentation Copy	QJM
--	Employee Confidentiality Agreement	Read	No	Yes	Send Original to HR	QJM
--	Authorization to Deduct Expenses	Read	No	Yes	Send Original to HR	QJM
--	Driver Information Request	Fill out	No	Yes	Send Original to HR	QJM
--	Confidential New Employee Logins and Passwords	Read	No	No	Keep (Secure)	Ken
--	Allworx VoiceMail Greetings Setup Guide	Read	No	No	Keep	QJM
--	Johnstone Telephone Directory	Read	No	No	Keep	QJM
--	Sexual Harrassment Policy	Read	No	No	Keep	QJM
--	Smoking Policy	Read	No	No	Keep	QJM
--	Employee Handbook	Read	No	Yes (twice)	Send <u>only</u> Original signature pages to HR	QJM
--	Pre-employment Paperwork: - Cover Letter - Resume - Application - Interview Form(s) - Thank-you letter (if any) - References write-up	NA	NA	NA	Send Original to HR	QJM

Supervisor Signature

Adam Janayman

Date

8/19/2019